Migrants who went the other way, from India to Pakistan, were not deemed citizens unless they returned with a permit for permanent resettlement.

Over time, Parliament gave sharper contours to these principles through the Citizenship Act, 1955, which remains the foundation of India's citizenship law. The Act allows citizenship by birth, descent, registration, naturalisation and incorporation of new territory. Each category has been revised over decades, narrowing the scope of birthright citizenship and tightening requirements for descent. For instance, a child born in India after December 3, 2004, is a citizen only if both parents are Indian, or if one parent is Indian and the other is not an illegal migrant. The law also carries within it special provisions: the Assam Accord, which recognised certain migrants who entered before 1971, and the Citizenship (Amendment) Act, 2019, which opened a fast track for Hindus, Sikhs, Buddhists, Jains, Parsis and Christians wishing to migrate from Afghanistan, Bangladesh and Pakistan.

But recognition on paper needs proof. In India, there is no single universal document that conclusively establishes citizenship. Instead, it is demonstrated through a patchwork of records, some primary, others supportive. A birth certificate or an Indian passport is considered the most direct evidence. Citizenship or naturalisation certificates, issued by the government, carry unambiguous authority. For those applying under the 2019 amendment, proof of religion, country of origin and entry into India before the cut-off date of December 31, 2014 (modified recently to December 31, 2024), is required. Naturalisation applicants, meanwhile, must demonstrate long years of residence, with documents ranging from utility bills to tax records.

Yet the vast majority of population rely on what are technically supporting documents—voter ID cards, entries in the electoral roll, Aadhaar, PAN, school records, land or tenancy papers, ration cards. These were never designed as citizenship papers but, in practice, they often become the instruments through which belonging is tested. The SIR exercise has now challenged this practice.

Perils of a Paper Trail

In India, citizenship tests based on documents have rarely worked well. Assam's NRC is a cautionary tale of administrative overreach, exposing the limits of paper trails. Supervised by the Supreme Court, it required 33 million residents to prove descent from someone living in Assam before midnight of March 24, 1971, the cut-off under the Assam Accord. People submitted 66 million documents to 2,500 service centres, which were then scrutinised by 52,000 officials sifting through records half a century old. The result: 1.9 million people excluded at a cost of Rs 1,600 crore—five times the original budget—with no final conclusive outcome.

More than five years later, not a single person has lost citizenship because the list remains unnotified and each exclusion would still face review by Foreigners' Tribunals and potential appeals up to the Supreme Court. Politically, the exercise backfired. Even the BJP, which championed a nationwide NRC, disowned Assam's version after its own leaders admitted that "so many genuine Indians" had been left out. Assam's NRC exposed a blunt truth: paper trails cannot capture belonging, especially for the poor and mobile. Women were especially disadvantaged, as records often failed to track name changes after marriage.

Bihar's ongoing SIR exposes the pitfalls of document-based citizenship tests. In a state where fewer than 40 per cent of births were registered before 2005, the exercise risks excluding the poor, displaced and women. Critics argue that without a long-standing civil registration system, formal documentation reflects wealth and privilege, not citizenship.

Faced with these charges, the ECI has steadily diluted its plan under Supreme Court scrutiny. Its June 24 order required every voter to file forms with one of the 11 approved documents by July 25. But as complaints mounted, officials allowed forms without proof, extended the deadline to August 30, and ensured bulk inclusion in the August 1 draft roll. The Commission also softened its stand on deadlines, permitting corrections until the nomination stage under "continuous updation". The trajectory is clear: after initial rigidity, the ECI has been forced into greater flexibility by ground realities and judicial pressure.

PROOF OF CITIZENSHIP

In India, citizenship is not proved by a single universal document but through a combination of primary records such as passports, birth or citizenship certificates, and supporting documents like voter ID, Aadhaar or land records, depending on the legal or administrative context

PRIMARY DOCUMENTS

These directly establish Indian citizenship

- **Birth certificate**
- **Indian passport**
- **Certificate of registration or naturalisation**
- **Citizenship certificate**
- **Overseas Citizenship of India (OCI) card:** not full citizenship but shows earlier citizenship/Indian origin
- **Domicile certificate:** especially for those recognised as citizens at the commencement of the Constitution